

Analysis

“Section 128.7 provides a trial court with the discretionary authority to impose sanctions when a party files a pleading that is factually or legally frivolous.” (*Peake v. Underwood* (2014) 2277 Cal.App.4th 428, 432.)

The Court, in overruling Defendants’ demurrer and denying their motion to strike, has already determined that the Complaint in this matter is not factually nor legally frivolous. The Defendants did not contest that determination – and that decision became the Order of the Court on July 22. Accordingly, Defendants’ motion for sanctions must fail.

In Opposition, Plaintiff argues that he should be awarded sanctions for opposing the motion. The Code states: “If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney’s fees incurred in presenting or opposing the motion.” The Court finds that sanctions against Defendants are not warranted under the circumstances of this case.

Conclusion

Defendants’ Motion for Sanctions is **denied**.

13. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT

FILED BY:

TENTATIVE RULING:

This hearing was vacated.

14. 9:00 AM CASE NUMBER: C26-00119

CASE NAME: FRANK YOUNGMAN, IV VS. DAVID TU

***HEARING ON MOTION IN RE: APPLICATION/MOTION TO APPEAR AS COUNSEL PRO HAC VICE**

FILED RE: MICHAEL R. WILLATS

FILED BY: ENCORE GROUP (USA) LLC, A DELAWARE LIMITED LIABILITY COMPANY

TENTATIVE RULING:

The Court has reviewed the Application and it is **approved**.

15. 9:00 AM CASE NUMBER: C26-01170

CASE NAME: JOLENE SOLIMAN VS. FCA US LLC

***HEARING ON MOTION IN RE: COMPEL INITIAL DISCLOSURES**

FILED BY: SOLIMAN, JOLENE

TENTATIVE RULING:

Plaintiff Jolene Soliman seeks to compel Defendant FCA US LLC to provide complete initial disclosures. Defendant opposed the Motion, stating that it provided all initial disclosures, absent the ones for

which it seeks a stipulated protective order. The Court received no timely reply. The Court is therefore left with an un rebutted statement that FCA has complied with its obligations, other than a pause in producing certain documents pending a stipulated protective order. The parties are ordered to meet and confer on an appropriate protective order so that FCA may complete its production. The Motion is otherwise **denied**.

16. 9:00 AM CASE NUMBER: MSC16-00996
CASE NAME: ELY VS. WALNUT CREEK ASSOCIATES 2 [PAGA]
HEARING ON SUMMARY MOTION CONTINUED FROM 6/4/2026
FILED BY:

TENTATIVE RULING:

Before the Court is a motion for summary judgment or, in the alternative, summary adjudication, filed by defendants Walnut Creek Associates 2, Inc. (DBA Walnut Creek Honda), Gordon S. Walton, Steve Sklavos and David Trzesniewski. The motion for summary judgment is **denied**, as set forth below. However, the **motion for summary adjudication is granted with respect to the fourth, fifth, sixth, and seventh issues.**

Since the previously-set June trial date was vacated at the initial hearing on this motion, the Court sets a trial setting conference on September 9, 2026, at 8:30 a.m. in this Department. Prior to that time, parties shall file statements in compliance with California Rules of Court, rule 3.725. The statements shall include the date on which the five-year statutory deadline is expected to run pursuant to Code of Civil Procedure, §§ 583.310, et seq.

I. Background

Defendant Walnut Creek Associates 2, Inc. employed plaintiff, Landen Ely, as an automobile technician at its car dealership. On May 11, 2016, plaintiff mailed his notice under the Labor Code Private Attorneys General Act of 2004 (Lab. Code, § 2698 et seq., hereafter “PAGA”) to the Labor and Workforce Development Agency (LWDA) and defendants. (Separate Statement of Undisputed Material Fact, hereinafter “SSUMF,” Fact. No. 1; Plaintiff’s Response to SSUMF, hereinafter “plaintiff’s response” or “PAF,” No. 19.) The notice, dated May 11, 2026, states:

This investigation request and notice of California Labor Code violations concerns the systematic failure by Walnut Creek Honda to pay current and former California non-exempt employees in conformance with the California Labor Code and Wage Orders. At the core of Walnut Creek Honda violations is a policy of failing to keep accurate time and payroll records; requiring, suffering or permitting employees to perform unpaid work outside their scheduled work time; failing to pay for downtime between piece rate employment, failing to pay premium wages for all hours worked in excess of eight (8) hours and 12 hours in a day and in excess of eight (8) hours on any seventh day of a workweek; using improper federal averaging in lieu of required California calculations regarding piece rate payments; failing to pay 1.5 times the regular rate for overtime work, refusing to authorize and permit rest periods or to provide premium wages in lieu thereof; failing to provide PAID rest periods pursuant to the flag rate system which compensates employees only for work provided, failing to provide timely, complete and uninterrupted meal periods free of duty and auto-deducting wages for meal periods not provided or taken; failing to pay rest and meal